

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Co-conservators are acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial hearing in two years, on July 11, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Yiota Patiris, Individually, and as Trustee of the Patiris Family Irrevocable Trust of 2017, created under trust agreement dated May 26, 2017 v. Kalaris Family Vineyard LLC, a Maryland Limited Liability Company et al **23CV000211**

CROSS-COMPLAINANTS’ MOTION TO COMPEL FURTHER RESPONSES FROM CROSS-DEFENDANTS DAN’S CREATIVE ENTERPRISES, INC. AND DANIEL CUNNINGHAM TO FORM INTERROGATORIES (SET ONE), SPECIAL INTERROGATORIES, (SET ONE), AND REQUEST FOR PRODUCTION (SET ONE)

TENTATIVE RULING: The motion is GRANTED in part and DENIED in part. The motion is GRANTED with respect to the request to compel a further response to: (1) Form Rogs (defined below) No. 15.1, and (2) Special Rogs (defined below) No. 32 to Mr. Cunningham and No. 34 to Dan’s Creative. The motion is GRANTED IN PART with respect to the request to compel a further response to Special Rogs Nos. 44-45 to Mr. Cunningham and No. 47 to Dan’s Creative, as further discussed *infra* in Section C.2. The motion is DENIED as to the request to compel a further response to (1) Special Rogs No. 14 to Mr. Cunningham and No. 16 to Dan’s Creative and (2) RPDs No. 21 to Mr. Cunningham and No. 20 to Dan’s Creative. The request for sanctions is DENIED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Cross-Complainants move, pursuant to Code of Civil Procedure sections 2030.260 and 2030.290,¹ for an order compelling (1) Cross-Defendant Daniel Cunningham (“Mr. Cunningham”) and Cross-Defendant Dan’s Creative Enterprises, Inc. (“Dan’s Creative”) (collectively, “Cross-Defendants”) to provide supplemental verified responses, without objections, to Cross-Complainant’s propounded Form Interrogatories, Set One (“Form Rogs”), No. 15.1; (2) Mr. Cunningham to provide supplemental verified responses, without objections, to Special Interrogatories, Set One (“Special Rogs”), Nos. 14, 32, 44, and 45, and Requests for Production of Documents, Set One (“RPDs”), No. 21; and (3) Dan’s Creative to provide supplemental verified responses, without objections, to Cross-Complainant’s Special Rogs Nos. 16, 34, and 47 and RPDs No. 20.

Cross-Complainants further move, pursuant to sections 2023.010 and 2030.030, for monetary sanctions to be awarded in favor of Cross-Complainants and against Cross-Defendants.

The Motion is made on the grounds that the responses fail to comply with the requirements of section 2030.220 in that they are not straightforward, and/or are incomplete or evasive.

B. LEGAL STANDARD

On receipt of a response to RPDs, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (§ 2031.310, subd. (a).)

A party moving to compel responses to production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (§ 2031.310, subd. (b)(1).) “[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance.” (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See *Kirkland*, *supra*, 95 Cal.App.4th at 98.)

For interrogatories, the propounding party has the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, but “the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-21.) To show an interrogatory seeks relevant, discoverable information “is not the burden of [the party propounding interrogatories]. As a litigant, it is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

the questions are not within the purview of the code section.” (*West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422.)

C. DISCUSSION

By Minute Order dated February 5, 2026, the Court ordered Cross-Defendants to, within 10 days of notice of entry of order, provide verified responses, without objections, to Cross-Complainants’ Form Rogs, Special Rogs, and RPDs, and further imposed monetary sanctions in the amount of \$1,350 against Cross-Defendants. (Declaration of Rafael Rios III, ¶ 5 (“Rios Decl.”).) Cross-Defendants neither opposed that motion, requested oral argument on the tentative ruling posted the day prior to that hearing, nor appeared at the hearing. (*Ibid.*) Cross-Complainants served notice of entry of the February 5 order on February 9. (*Id.*, ¶ 6.) Cross-Defendants did not serve responses until April 17, and, as of the date of signing the Rios Decl., Cross-Complainants have not paid the monetary sanctions. (*Id.*, ¶ 7.)

Cross-Complainants contend the responses contain incomplete, deficient, and evasive answers as follows.

1. Form Rogs No. 15.1

Cross-Complainants contend that Cross-Defendants’ responses to No. 15.1 are deficient because they consist of a single narrative paragraph of general facts, which fail to provide detailed facts and fail to identify which facts support which specific denials or defenses. The Court agrees. (See Separate Statement, 3:1-10.) No. 15.1 specifically directs the responding party to, first, identify *each* denial and/or affirmative defense and, second, *for each*, provide responses as to three sub-parts. Cross-Defendants’ response fails to comply therewith.

Cross-Complainants have therefore met their burden on the motion. By failing to file an opposition, Cross-Defendants have failed to meet their burden of justifying the response. As such, the motion to compel a further response from Cross-Defendants on Form Rogs No. 15.1 is GRANTED.

2. Special Rogs

No. 14 to Mr. Cunningham and No. 16 to Dan’s Creative:

These Special Rogs ask: “Did the plans for the construction of the NEW BRIDGE call for the abutments to be placed outside the 100-year flood water elevation?”

Cross-Complainants argue that Cross-Defendants’ responses do not directly answer yes, no, or state a lack of sufficient information to respond to the interrogatory, and that Cross-Complainants cannot determine with certainty what Cross-Defendants’ position is regarding the plan requirements.

The Court disagrees. Cross-Defendants’ responses include that they “lack[] the expertise to interpret or independently verify engineering or hydrological design criteria reflected in the

plans, including any designation of the 100-year flood water elevation,” then go on to state their position that “the plans do not indicate or require that the bridge abutments be placed outside the 100-year flood water elevation.” (Separate Statement, 5:5-17.)

Although Cross-Defendants failed to file an Opposition to justify their responses, the “general principle [is] that a party who seeks a court’s action in his favor bears the burden of persuasion thereon.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see also Evid. Code § 500.) Here, the Court finds Cross-Complainants’ representation of the responses inaccurate and is therefore not persuaded that a further response is required.

Based on the foregoing, the motion to compel a further response to Special Rogs No. 14 and 16 is DENIED.

No. 32 to Mr. Cunningham and No. 34 to Dan’s Creative:

Cross-Complainants argue that Cross-Defendants’ response fails in two respects. First, it fails to provide the addresses for two individuals identified: Ismael Vaquez and Eddy Vargas. Cross-Complainants contend they need this information to effectively locate, depose, interview, and/or serve a subpoena on these individuals. Second, Cross-Defendants vaguely identify “representatives” of Napa County and other governmental agencies without identifying the specific individuals, which Cross-Complainants contend is too vague to constitute a meaningful response.

The Court finds that Cross-Complainants have met their burden on these Special Rogs. By failing to file an opposition, Cross-Defendants have failed to meet their burden of justifying the response. As such, the motion to compel a further response to Special Rogs Nos. 32 and 34 is GRANTED.

Nos. 44-45 to Mr. Cunningham and No. 47 to Dan’s Creative:

Cross-Complainants argue that Cross-Defendants’ responses fail to provide complete account numbers for responsive bank accounts and credit cards, and further fail to provide the dates the accounts were opened and closed, authorized signatories, and current balances, as requested. With respect to the need for the full account numbers, Cross-Complainants contend that credit card issuers and banks require full account numbers to identify specific accounts and produce records and therefore Cross-Complainants cannot effectively subpoena the records without the full numbers.

The Court finds that the responses provide the authorized users, contrary to Cross-Complainants’ representation. (See Separate Statement, 8:1-6, 8:26-9:4.) The remaining information, however, is missing. By failing to file an opposition, Cross-Defendants have failed to meet their burden of justifying the response. As such, the motion to compel a further response to Special Rogs Nos. 44, 45, and 47 is GRANTED in part. Cross-Defendants shall provide a further response to Nos. 44, 45, and 47 to provide the complete account numbers and a further response to No. 44 to provide the dates the accounts were opened and closed and current

balances as of the time of the response. The parties shall meet and confer regarding the necessity for a protective order concerning the account numbers.

3. RPDs

No. 21 to Mr. Cunningham and No. 20 to Dan's Creative:

These RPDs request all documents identified in response to Special Rogs No. 46 to Mr. Cunningham and No. 52 to Dan's Creative. Those Special Rogs request Cross-Defendants to identify all real property owned, leased, or otherwise used by them and all documents evidencing ownership, lease or use. Cross-Defendants responded that they would produce the requested documents. Cross-Complainants contend that no responsive documents were produced.

First, Cross-Complainants fail to provide evidentiary support for the contention that no responsive documents have been produced. (See generally Rios Decl.) Second, it is unclear what further response Cross-Complainants seek and, to the extent a further response is sought, Cross-Complainants fail to set forth specific facts showing good cause justifying the discovery sought. (See § 2031.310, subd. (b)(1).) Rather, it *appears* Cross-Complainants' true desire is to compel Cross-Defendants to comply with their agreement to produce documents. However, Cross-Complainants nowhere cite to, or discuss, the statutory authority governing such a request.

Based on the foregoing, the motion to compel a further response to these RPDs is DENIED.

D. SANCTIONS

Cross-Complainants request monetary sanctions pursuant to sections 2023.010 and 2023.030 for Cross-Defendants' refusal to provide further responses in compliance with the discovery statutes. Sections 2023.010 and 2023.030 "g[i]ve trial courts a statutory basis for exercising authority to address egregious forms of misconduct not addressed elsewhere in the [Civil Discovery] Act." (*City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal.5th 46, 74.) "A court may invoke its independent authority to impose sanctions under sections 2023.010 and 2023.030 *only* when confronted with an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision." (*Ibid.* Emphasis added.)

Here, Cross-Complainants' Motion does not raise an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision under the Civil Discovery Act. (See §§ 2031.310, subd. (h), 2030.300, subd. (d).) Cross-Complainants' failure to move for sanctions under those relevant provisions is not clear to the Court. Although the Motion raises a pattern of Cross-Defendants' discovery abuse, the individual occurrences that make up that pattern (i.e., failure to timely response to requests, failure to provide code-compliant further responses, failure to obey court order) have relevant sanction provisions. (See *ibid.*, §§ 2031.300, subd. (c), 2030.290, subd. (c).) Again, Cross-Complainants did not move for sanctions under those relevant provisions. Cross-Complainants have failed to show that sanctions here are

appropriate under sections 2023.010 and 2023.030. For the foregoing reasons, the request for monetary sanctions is DENIED.

Cross-Complainants' request for non-monetary sanctions (see Mem., 8:22-9:12) is DENIED on the grounds that that type of sanction was not included in their Notice of Motion. (§ 2023.040.)

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Balcal Construction, Inc. v. Suzanne Giraudo et al

23CV001364

MOTION FOR ORDERS GRANTING LEAVE TO AMEND CROSS-COMPLAINT ADDING PARTIES AND CAUSES OF ACTION

TENTATIVE RULING: The motion is DENIED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Defendants Louis and Suzanne Giraudo (collectively, "Defendants") move, pursuant to Code of Civil Procedure section 576² and California Rules of Court, Rule 3.1324, for an order granting leave to amend the cross-complaint to add three parties and four causes of action. Specifically, Cross-Complainants seek an order allowing them to add (a) as Cross-Defendants, Berkley Assurance Company ("BAC"), RT Specialty, LLC and RSG Specialty, LLC, and (b) four causes of action as follows: (i) Breach of Contract and Tortious Breach of the Implied Covenant of Good Faith and Fair Dealing against BAC, (ii) Negligence Against RT Specialty, LLC and RSG Specialty, LLC (collectively, "Insurance Producers"), and (iii) Declaratory Relief against BAC and the Insurance Producers.

The hearing on the matter was continued by *ex parte* order, dated 6/1/26, and an order, dated 6/3/26, to remedy Defendants' untimely notice of the hearing to BAC. The Court now realizes there is no Proof of Service of any relevant papers (i.e., the original May 13 notice and moving papers, the May 21 amended notice and moving papers, or the two orders dated June 1 and 3), on the two other proposed Cross-Defendants, the Insurance Producers. Moreover, neither Insurance Producer filed an opposition to the Motion. Rather than continuing the matter a third

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